

THE UNIVERSAL HOUSE OF JUSTICE

1987-03-25

To all National Spiritual Assemblies

1 dear b ahá'í f riends,
2 in furtherance of the goal of the Six year plan to educate the friends
3 throughout the world in the law of buququ'lláh, the research department
4 has prepared a simple codification of the law. A copy of this codification is enclosed
for you to share, as you judge appropriate, with the friends under
5 your jurisdiction. it is based largely on a codification produced spontane-
6 ously by some friends in Austria and on another written under the auspices
7 of the united States National Spiritual Assembly. references throughout
8 the document are to the sections of the compilation on buququ'lláh which
9 has already been sent to you.

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11 To help the friends increase their understanding of the significance of
12 this law of god, the research department was also requested by the uni-
13 versal house of justice to prepare a brief history of the development of the
14 institution which has been associated with the law since the early years
15 of its operation. This is also enclosed and is based on an article in persian
16 written by the hand of the cause of god dr. 'Alí muḩammad varqá, apart
17 from the final section about dr. varqá himself, which has been added by the
18 research d epartment.

19 it is hoped that National Spiritual Assemblies will use this material as
20 extensively as possible to educate the friends and deepen their understand-
21 ing of this vital law of the f aith of b ahá'u'lláh.
22 with loving b ahá'í greetings,

Department of tHe secretariat

23 21-1. See cc 1:489-527 .21.1

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A Codification of the Law of Puqúqu'lláh

march 1987

prepared by the research department

at the request of the universal house of justice

I. Preamble

23 puqúqu'lláh (The right of god) is a great law (7)21-2 and a sacred institution
24 (72). laid down in the most holy book (kitáb-i-Aqdas), it is one of the key
25 instruments for constructing the foundation and supporting the structure
26 of the world order of bahá'u'lláh. it has far-reaching ramifications that
27 extend from promoting the welfare of the individual, to buttressing the authority and
extending the activity of the head of the faith. in providing
28 a regular and systematic source of revenue for the central institution of the
29 cause, bahá'u'lláh has assured the means for the independence and decisive
30 functioning of the world center of his faith.

by identifying this law as “The right of god” bahá'u'lláh has reem-

31 phasized the nature of the relationship between human beings and their creator as a
covenant based on mutual assurances and obligations; and, by
32 designating the central Authority in the cause, to which all must turn, as
33 the recipient of this right, he has created a direct and vital link between
34 every individual believer and the head of his faith that is unique in the
35 structure of his world order. This law enables the friends to recognize the
36 elevation of their economic activity to the level of divine acceptability, it is
37 a means for the purification of their wealth and a magnet attracting divine

blessings. The computation and the payment of puqúqu'lláh, within the

38 general guidelines set forth, are exclusively a matter of conscience between the
individual and god (8, 104); demanding or soliciting the puqúqu'lláh

39 is prohibited (8, 9, 38, 71, 96, 104), only appeals, reminders and exhortations of a
general nature, under the auspices of the institutions of the faith, are permissible (38, 70, 99,

104, 107). That the observance and en-

40 forcement of this law, so crucial to the material well-being of the emerging bahá'í
commonwealth, should thus have been left entirely to the faith and

41 conscience of the individual, gives substance to and sheds light on what the

42 21-2. The numbers in parentheses refer to the paragraphs of the compilation on

ḥuqúqu'lláh issued by the house of justice.21.4

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22 meS Sa ge S f ro m Th e u n i v e r S a l h o u S e o f j u S T i c e

23 beloved master calls the spiritual solution to economic problems. indeed,

24 the implications of the law of ḥuqúqu'lláh for the realization of a number

25 of the principles of the faith, such as the elimination of extremes of wealth

26 and poverty, and a more equitable distribution of resources, will increas-

27 ingly become manifest as the friends assume in ever greater measure the
responsibility for observing it.

The fundamentals of the law of ḥuqúqu'lláh are promulgated in the

28 kitáb-i-Aqdas. further elaborations of its features are to be found in other

29 writings of bahá'u'lláh, in Tablets from 'Abdu'l-b ahá and in letters from

30 separately published. A study of that compilation makes it clear that the

31 application of the law has been progressive, and will continue to be so, as its

32 ramifications and subsidiary rulings are elucidated.

The following is a preliminary attempt at codifying the information

33 in the writings on the subject of ḥuqúqu'lláh. it should be emphasized,

34 however, that the friends should not attempt to read into it an element of rigidity or
total comprehensiveness. The questions put to bahá'u'lláh,

35 the master and Shoghi effendi were from friends residing in places and

36 times with infinitely simpler economic systems and relationships than those

37 which obtain today. what can be learned from them are clear guiding prin-

ciples whose application to changing and more complex conditions must

38 be considered. The subject will undoubtedly occupy the universal house

39 of justice in evolving legislation, as necessary, for a long time to come. As

the fourth epoch of the formative Age of our faith unfolds before the

40 eyes of an increasingly watchful humanity, the universal assumption of the
obligation of þuqúqu'lláh by the friends will be a clear sign of attaining to
41 a new level of spiritual maturity by the community of the greatest Name
42 throughout the world.

II. A Bounty Granted by God

god, while being wholly independent of all created things, has in his

43 bounty given us this law (7, 10, 63), for the progress and promotion of the
cause depend on material means (1). obedience to this law enables the
44 believer to be firm and steadfast in the covenant (63), provides a reward in
45 every world of the worlds of god (7), and is a unique test of true faith (62).21.6

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23 5The þuqúqu'lláh is to be offered joyfully and without hesitation (2, 9,
24 32). when the þuqúqu'lláh is offered in this spirit it will impart prosperity
25 and protection to the friends, purify their worldly possessions (20, 31, 42,
26 46, 48, 100), and enable them and their offspring to benefit from the fruits of their
endeavors (48).

III. Determining the þuqúqu'lláh

27 everything that a believer possesses, with the exception of certain specific
28 items, is subject once and only once to the payment of þuqúqu'lláh.

29 A. exempt from assessment to þuqúqu'lláh are:

1 The residence and its needful

2 21-3 furnishings (11).

2 The needful business and agricultural equipment which produce
3 income for one's subsistence (12, 67, 68).

4 b. payment falls due:

1 þuqúqu'lláh is payable as soon as a person's assessable possessions

reach or exceed the value of 19 mithqáls of gold (18, 19, 30). [19

mithqáls equals approximately 2.2 troy ounces, or approximately

69.2 grams (87, 105, 110). At the present time—m arch 1987—

this is equivalent to some uS\$914.]

70 a. The amount to be paid is 19% of the value of the as-sessable property (10, 14).

b. The payment is due on whole units of 19 mithqáls of

71 gold (15).

2 þuqúqu'lláh is payable on further units of 19 mithqáls of gold

when subsequently acquired possessions, after the deduction of

the annual expenses, raise the value of the assessable property

3 sufficiently. Among the expenses to be deducted are:

4 a. The general expenses of living (65, 66, 69, 78).

b. losses and expenses incurred on the sale of possessions

5 (103).

c. Sums which are paid to the State, such as taxes and

6 duties (78).

7 21-3. See iii.c.1.21.9

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22 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

23 63. when a person receives a gift or bequest it is to be added to his

possessions and augments the total value in the same way as does

24 an excess of annual income over expenditure (111).

4 i f a property increases in value, þuqúqu'lláh is not payable on

5 that increase until it is realized, e.g. on the sale of the property.

5 i f possessions decrease, such as through the expenses of a year

exceeding the income received, þuqúqu'lláh falls due again only

after the loss has been made good and the total value of one's

6 assessable possessions is augmented (15–19, 30, 65–68, 78, 108, 111).

6 The payment of debts takes precedence over the payment of þuqúqu'lláh (22).

7 . The payment of þuqúqu'lláh is dependent on the person's finan-

8 cial ability to meet his obligations (24).

8 o n the death of a believer, the completion of his payment of

9 þuqúqu'lláh is accomplished in the following manner:

a. The first charge on the estate is the expense of burial

10 (22).

11 b. Secondly, the debts of the deceased must be paid (13).

c. The ḥuqúqu'lláh still due on the property should then

be paid. in establishing the value of the property on

which ḥuqúq has not already been paid, the following

12 are among the deductions to be made:

13 – expenses of burial (22),

14 – debts of the deceased (13),

– loss of value of the assets when realized (103)

and

– expenses incurred in realizing the assets

15 (103).

16 c. Further notes on determining ḥuqúqu'lláh:

1 it is left to the discretion of the individual believer to decide what

2 is “needful” for himself and his family (104–6, 112).

2 Although references are made to annual payments of ḥuqúqu'lláh,

3 the time and method of payment are left to the discretion of the individual believer.

There is, therefore, no obligation to liquidate

4 one's assets in haste in order to fulfill one's current obligations to

5 ḥuqúqu'lláh (103).

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73. husband and wife are free to decide whether they want to honor

7 their ḥuqúqu'lláh obligations jointly or individually (109, 110).

4 The account of ḥuqúqu'lláh should be kept separate from other

contributions, inasmuch as the disposition of the funds of the

ḥuqúqu'lláh is subject to decision by the central Authority in

the cause to which all must turn, whereas the purposes of the

contributions to other funds may be determined by the donors

5 themselves.

5 payment of the ḥuqúqu'lláh has priority over making contribu-
tions to other funds of the faith (78, 79, 97, 100), as well as over
6 the cost of pilgrimage (31). it is, however, left to the discretion of
the believer whether or not he treats his contributions to the fund
as an expense when arriving at the value of the annual accretion
to his property for the purpose of calculating the ḥuqúqu'lláh
7 that he is due to pay (105).

8 IV. Applicability of the Law of ḥuqúqu'lláh The teachings of bahá'u'lláh can be
enforced only gradually because the
9 time must be ripe if the desired results are to be attained (84–86). Thus
10 hitherto the law of ḥuqúqu'lláh has been applied only to the believers
from iran and other countries of the middle east. The other believers
11 have been encouraged to support their local and national funds in its place but,
although the law is not yet binding on them, they are and have been free to offer the
ḥuqúqu'lláh if they wish to do so (82, 93, 102, 103, 109,
12 110).

V. Payment of ḥuqúqu'lláh

13 The ḥuqúqu'lláh is normally paid to the Trustee of ḥuqúqu'lláh, his depu-
14 ties, or their appointed representatives (35, 58). These persons issue re-
15 cepts and forward the funds to the world center (56).

VI. Management of the ḥuqúqu'lláh

16 decisions on the necessary ordinances concerning ḥuqúqu'lláh (81, 100),
17 as well as on its disposition, lie within the sole jurisdiction of the central
18 Authority in the cause. The ḥuqúqu'lláh can be employed for charitable
19 purposes (62, 65, 75), or for other purposes useful to the cause of god

(77, 78).21.11

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22 message from The Universal House of Justice

8The Development of the Institution of ḥuqúqu'lláh

march 1987

prepared by the research department

at the request of the universal house of justice

23 in one of his Tablets bahá'u'lláh refers to this law as ranking in impor-
24 tance immediately after the two great obligations of recognition of god and
25 steadfastness in his cause, and yet the introduction and implementation of
26 this law are characterized by kindness, forgiveness, tolerance and magna-
27 nimity. Although it deals with the material things of this world, it is placed
28 among those spiritual obligations resting on the individual soul, such as
29 prayer and fasting, the fulfillment of which is a direct responsibility of each believer
towards god, not subject to the sanctions or impositions of his in-
30 stitutions in this world. it is, indeed, a clear expression of the priorities with
31 which bahá'u'lláh views the duties of mankind. first comes the spiritual,
32 and then the material—however important in practice the latter may be.
33 After the kitáb-i-Aqdas had been revealed in response to the pleas of the
34 friends, bahá'u'lláh withheld it from publication for some time and even
35 then, when a number of devoted bahá'ís, having learned of the law, endeav-
36 ored to offer the ḥuqúqu'lláh, the payment was not accepted. The Tablets
37 of bahá'u'lláh show his acute consciousness of the way in which material
38 wealth has been permitted to degrade religion in the past, and he preferred
39 the faith to sacrifice all material benefits rather than to soil to the slightest
40 degree its dignity and purity. herein is a lesson for all bahá'í institutions for
41 all time.

however, as the beloved guardian explained, funds are the life-blood

42 of the cause. god himself, as bahá'u'lláh stated, has made achievement
43 dependent on material means. Therefore, as the awareness of the friends

grew, he permitted the ḥuqúqu'lláh to be accepted, provided the donor

44 made the offering willingly with joy and awareness.

To receive the ḥuqúqu'lláh, bahá'u'lláh brought into being one of the

45 great institutions of the faith, the Trusteeship of ḥuqúqu'lláh.

46 The first to be honored with appointment as Trustee of ḥuqúqu'lláh was

jinnáb-i-Sháh muḥammad from manshád, yazd, who eventually received

47 from the blessed beauty the title of Amínu'l-b ayán (T rustee of the bayán).

ḡájí Sháh muḡammad had embraced the faith in its early years and had

48 the bounty of entering the presence of bahá'u'lláh in baghdad. The fire
49 of love kindled in his heart made him impatient to offer his services to 21.14

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23 9the Threshold of his beloved, and this undertaking he followed until the
24 last moment of his life, surrendering all material belongings in the path of
25 service. encompassed by hardship, danger and lack of means, this trusted
26 servant of bahá'u'lláh, in journey after journey, would carry the friends'
27 donations of ḡuqúqu'lláh and their petitions to the Sacred Threshold and,
28 in return, bring them news and Tablets from the b lessed p erfection.

one of the most sacred tasks entrusted to Amínu'l-b ayán was to go to

29 iran to receive the remains of the báb from their custodian, the devoted
30 and valiant hand of the cause of god jináb-i-ḡájí ákhúnd, and to transfer
31 them through innumerable dangers to a safe hiding place in the m osque of

the imámzádiḡ zayd in Tehran, where they lay concealed until the time

32 when, at the behest of 'Abdu'l-b ahá, they were transferred to the holy land
33 to be laid in their permanent resting place on the slopes of m ount carmel.

The attention of jináb-i-Sháh muḡammad was drawn to the rare quali-

34 ties of nobility and detachment of one of the believers, ḡájí Abu'l-ḡasan

Ardakání, who was also from yazd. The bond of fellowship between them

35 became so strong that they became the closest of companions. jináb-i-Sháh

muḡammad chose ḡájí Abu'l-ḡasan to be his assistant and confidant in

36 his services as the T rustee of ḡuqúqu'lláh. They were among the first group
37 of pilgrims who, after encountering grave hardships and difficulties, were
38 able to visit bahá'u'lláh in 'Akká. on their return to iran they decided to

39 make numerous journeys together, and on one of these journeys, in 1881, they were
attacked and caught during a kurdish revolt, and jináb-i-ḥájí

40 Sháh muḥammad was seriously wounded. bahá'u'lláh instructed that, fol-

41 lowing the passing of jináb-i-Sháh muḥammad, the office of Trustee of

42 ḥuququ'lláh should be conferred upon his loyal assistant and companion, jináb-i-ḥájí
Abu'l-ḥasan, who was subsequently entitled Amín (the Trusted

43 one) or jináb-i-ḥájí Amín.

jináb-i-ḥájí Amín was a shining star who served the cause for forty-

44 seven years with eagerness and zeal, showing magnanimity, courage and incredible
steadfastness. during the ministry of bahá'u'lláh he was impris-

45 oned twice, by order of Ná'iri'd-dín Sháh and his son, kámrán mírzá. in

46 the course of his second imprisonment, in the prison of qazvín, referred to

47 as Sijn-i-matín (the mighty prison) by bahá'u'lláh in the opening verses of

48 the Tablet of the world, he was together with the hand of the cause ḥájí

49 ákhúnd. here, jináb-i-Amín suffered gravely, his legs in fetters and a chain

50 around his neck. his jailers, in order to torment him, would add castor oil

51 to his food. with manifest resignation and submission, he would neither 21.19

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22 me Sage from The Universal House of Justice

23 0complain nor refuse the food, eating as though nothing were amiss. he was

24 a symbol of magnanimity and detachment. he had no worldly possessions,

25 no home or shelter of his own. his habitation was in the hearts and souls

of the bahá'í friends who would receive and entertain him with warmth

26 and love. each one would impatiently await his arrival, to enjoy the sweet

27 melody of his prayers and chanting of the Tablets, the glad-tidings and

encouragement he would bring. every day he would bid good-bye to one

28 family to spend the night in another household, illumining another gather-

29 ing with his presence. he was continually on the move, traveling to most

30 iranian cities and being the trusted adviser of many bahá'í friends in their

31 personal affairs.

Among the countless journeys that pájǐ Amín made was one to paris

32 where he attained the presence of ‘Abdu’l-b ahá. during his long life he wit-
33 nessed the last eleven years of the ministry of bahá’u’lláh, the twenty-nine
34 years of the ministry of the center of the covenant, and seven years of the
35 guardianship of Shoghi effendi. Towards the end of his life he became ill
36 and frail and was confined to bed, living in the home of his friend and as-
37 sistant, pájǐ ghulám riǎá, who, at the express desire of ‘Abdu’l-b ahá, had
38 been appointed his successor as T rustee of þuqúqu’lláh. upon his passing

in 1928, pájǐ Amín was named by the beloved guardian a hand of the

39 cause of g od.

The third T rustee of þuqúqu’lláh, jináb-i-g hulám riǎá, was entitled

40 Amín-i-Amín (T rustee of the T rustee). This distinguished soul was born
41 into the wealthy merchant class of Tehran and was brought up to enjoy the
42 comfortable life associated with it. during his youth, the urge to discover
43 spiritual realities led him to the study of comparative religion and, while
44 engaged in his business, he ventured to search out and associate with fol-lowers and
leaders of religion. disappointed in what he found, he sought

more information about the bahá’í faith, which had been introduced to

45 him by his secretary. This enquiry soon developed into a serious study of the sacred
Tablets and writings and his heart was illumined with the light

46 of faith. After embracing the cause, jináb-i-pájǐ ghulám riǎá engaged in
47 bahá’í activities and, at the age of 32, he gave up trade to devote himself
48 fully and freely to the service of the faith. he developed a special attach-
49 ment to jináb-i-Amín and became his constant assistant. in due course he
50 received a Tablet from ‘Abdu’l-b ahá urging him to emulate jináb-i-Amín
51 and appointing him as T rustee of þuqúqu’lláh. while ever mindful of the 21.22

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23 1responsibilities of his new position, he took the utmost care of jináb-i-
24 Amín for the remainder of his life.

25 jináb-i-g hulám riǎá held the rank of T rustee of þuqúqu’lláh for eleven

26 years. his home became a center for the gatherings of the friends and for the
27 administration of the affairs of the faith. it was during his Trusteeship that
28 initial steps were taken for the registration of bahá'í properties and endow-
29 ments in iran, and he was assiduous in doing his utmost for their protection
30 and preservation. in 1938 he fell ill and passed away.

The fourth Trustee of ḥuqúqu'lláh, appointed to this position by the

31 beloved guardian, was jináb-i- valíyu'lláh varqá, the third son of varqá the
32 martyr. he was born in Tabríz and, after the martyrdom of his father and

brother, he was brought up from early childhood by his grandmother, a

33 staunch, powerful and fanatical muslim. She did her utmost, until his early
34 youth, to sow the seeds of enmity to the faith in his heart. when he was
35 sixteen, his uncle, surnamed Akhu' sh-Shahíd (the brother of the martyr),
36 managed to remove him from this agonizing atmosphere of prejudice and took him
to his home in mýándu'áb. There he introduced him to the bahá'í

37 faith and its teachings, opening a new world to jináb-i- varqá. So afire did he
38 become with love for the faith that, without any preparations, he decided
39 to go on pilgrimage in the company of a close friend. however, his local
40 Spiritual Assembly did not approve of this, and guided him, instead, to go
41 to Tehran to join his elder brother jináb-i- 'Azízu'lláh varqá.

42 After his schooling in Tehran, jináb-i- varqá's longing to make his pil-
43 grimage was fulfilled, and he then attended the American university in
44 beirut, deepening his knowledge of the bahá'í teachings under the guidance
45 of 'Abdu'l-bahá during his summer vacations. during this time he made a
46 journey to iran at the behest of the master, and later accompanied him on
47 his historic journey to europe and America, as an interpreter. upon the
48 completion of this journey, he returned to iran and rendered invaluable ser-
49 vices on the local Spiritual Assembly of Tehran, in many bahá'í administra-
50 tive agencies, and ultimately on the National Spiritual Assembly. his loyal
51 and dedicated service as Trustee of ḥuqúqu'lláh was to follow, occupying
52 him for seventeen years, during which time the observance of the law of
53 ḥuqúqu'lláh was spread throughout iran, so that ever more of the friends

54 fulfilled their obligations, offering large sums and many properties. in order
55 to devote his full time to this sacred enterprise, jináb-i- varqá resigned from

the work in which he was employed.21.24

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22 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

23 2in 1951 jináb-i- valíyu'lláh varqá was among the first contingent of emi-

24 nent believers elevated by Shoghi effendi to the rank of hand of the cause

25 of god. This opened new opportunities for him to meet with the friends

26 and cheer their hearts with news of the victories being achieved in the teach-

27 ing work, especially during the Ten year crusade, which opened at riḫván

28 1953. These memorable services culminated in the fulfillment of his long-

29 cherished desire to visit the beloved g uardian.

30 on his return to iran from pilgrimage, a previous ailment grew worse,

31 and jináb-i- varqá was forced to go to Tübingen in germany for hospital

32 treatment and an operation. The treatment, alas, was unsuccessful, and in November
1955 his noble life drew to a close.

in the cable announcing the passing of valíyu'lláh varqá, Shoghi

33 effendi included the words: "h is mantle as T rustee puqúq now falls on 'Alí

muḩammad, his son. . . . Newly appointed T rustee puqúq now elevated

rank h and cause."

just two years following the appointment of jináb-i-'Alí-m uḩammad

34 varqá to this onerous task, he and his fellow hands of the cause of god

35 were confronted with the heart-breaking and soul-stirring events associated

36 with the passing of the beloved guardian, and carried the entire bahá'í

37 world to the victorious conclusion of the Ten year crusade, bringing into

38 being, at riḫván 1963, the u niversal h ouse of j ustice.

The following twenty-three years have seen storms of tribulation and

39 persecution afflicting the bahá'í community in iran, causing immense prob-

40 lems to be wrestled with in relation to the safeguarding and sale of proper-

41 ties donated for the ḥuqúqu'lláh as well as a multitude of other historic
42 tasks that have fallen to the lot of jináb-i- varqá in his capacity as a hand of
43 the cause of g od.

The successive teaching plans caused an outflow of pioneers from iran

44 to all corners of the world, requiring the T rustee of ḥuqúqu'lláh to appoint
45 deputies and representatives in many countries beyond the borders of iran
46 until, at this time, the institution is represented in every continent of the
47 earth. Not only do the friends from middle eastern countries continue to
48 obey the law of ḥuqúqu'lláh in their adopted countries, but, increasingly,
49 other friends have been moved to offer the ḥuqúq.

50 A new stage, therefore, has now been opened in the development of this
51 institution, a stage that will for ever be associated with the opening of the
52 fourth epoch of the formative Age of the faith and the emergence of the

bahá'í community from obscurity into the arena of world affairs.21.27

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Riḍván Message 1987

[signed: The Universal House of Justice]